FIELD GUIDE 05 · SCIENCE, STEM & RESEARCH

EB-1A for Scientists

THE RESEARCHER'S BLUEPRINT

A premium guide for academic and industry researchers, engineers, and STEM professionals

AiVass

Published by AiVass LLC

PURPOSE. PROOF. PERMANENCE.

AIVASS FIELD GUIDE 05 · SCIENCE, STEM & RESEARCH

EB-1A

for Scientists

The Researcher's Blueprint

For academic and industry researchers, engineers, and STEM professionals building a **self-petitioned extraordinary ability case**.

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Before You Begin

Legal disclaimer — please read

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WHERE THIS GUIDE SITS

This is a **field guide**. The **AiVass EB-1A Master Guide** covers the full legal framework and all ten criteria in general terms; Chapter 2 here restates the essentials so this guide stands alone. Everything else is written for the field the regulation was drafted around — and for the researchers it accidentally excluded: **industry scientists and engineers whose work ships instead of publishing**.

How to Use This Guide

- **Beginner — "Is my record strong enough?"** Chapters 1–3 and the self-assessment in Chapter 12.
- **Advanced — "How do I turn a CV into a petition?"** Chapters 4–9. Citation context, significance, peer review, memberships, the industry bridge, and the sprint plan.
- **Expert / B2B — "How do we run STEM cases at volume?"** Chapter 11. Intake, bibliometric methodology, exhibit architecture, and the STEM RFE register.

THE THREE BOXES

Straight from the source

Blue boxes carry the controlling authority — statute, regulation, or the USCIS Policy Manual.

Strategy note

Gold boxes carry AiVass strategy: how strong STEM cases are positioned, and where weak ones fall apart.

The bottom line

Navy boxes distill the chapter into the one thing to remember.

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CHAPTER

01

The Field the Rules Were Written For

Which is exactly why so many scientists file badly.

The ten criteria at 8 C.F.R. § 204.5(h)(3) read like a research CV because, in large part, that is what they were modeled on. Scholarly articles. Judging the work of others. Original contributions of major significance. If you are an academic scientist, the doors are already open.

That advantage becomes a trap. Because the criteria fit so naturally, STEM petitioners file **the CV itself** — a publication list, an h-index, a stack of letters — and assume the numbers speak. They do not. USCIS says so directly: publication, patents, and funding may establish that work is **original**, but **"will not necessarily establish, on its own"** that it is of major significance. And an h-index submitted without its methodology is not evidence; it is a number.

What the category offers a research career

- **Self-petition.** No university, no PI, no employer. You file your own Form I-140.
- **No job offer, no PERM.** The Policy Manual confirms an EB-1A petition "does not need to be supported by a job offer."
- **Independence.** For postdocs and H-1B researchers whose status is chained to one lab or one company, this is the entire proposition.
- **First preference.** Current for most countries — and for Indian and Chinese nationals, years ahead of EB-2 (Chapter 10).

Who this guide is for

- Academic researchers: postdocs, research scientists, faculty at any rank.
- Industry researchers and applied scientists at corporate labs.
- Engineers whose contributions ship as products, systems, or standards rather than papers.

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- Data scientists, ML researchers, and computational scientists.
- Clinical researchers, biostatisticians, and translational scientists.
- Founders of deep-tech and research-driven startups (read Field Guide 01 alongside this one).

The two profiles, and their opposite problems

The academic	The industry researcher
Has: publications, citations, peer review, conference talks.	Has: deployed systems, patents, revenue impact, equity, scale.
Missing: context. A citation count with no field baseline. An h-index with no methodology. Venues with no quartile.	Missing: the traditional criteria. Few or no papers, no peer review, no academic memberships.
Fails at: Step 2, on major significance and top-of-field standing.	Fails at: Step 1, by never arguing comparable evidence.
Fix: quantify the denominator (Chapter 5).	Fix: build the comparable-evidence bridge (Chapter 8).

Strategy note — the September 2023 update

USCIS published guidance specifically addressing STEM evidence and comparable evidence, and listing final-merits factors that read like a research scorecard: publication in high-impact venues, citation rates relative to the field, positions at leading institutions, unsolicited invitations to speak, and being named on competitive U.S. government grants. That list is not a suggestion. It is the outline of your final-merits section (Chapter 9).

The bottom line

The criteria fit you. That is the danger. A CV is not a petition — context, comparison, and significance are what convert one into the other.

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CHAPTER
02

The Standard in Plain English

Three prongs, one definition, two steps.

The three prongs

> **Straight from the source**
>
> **1.** Extraordinary ability in the sciences, demonstrated by **sustained national or international acclaim**, with achievements recognized through extensive documentation.
>
> **2.** Intent to **continue working in your area of extraordinary ability** in the United States.
>
> **3.** Your entry will **substantially benefit the United States** in the future.
>
> *— INA § 203(b)(1)(A); USCIS Policy Manual, Vol. 6, Pt. F, Ch. 2*

The definition

> **Straight from the source**
>
> "A level of expertise indicating that the individual is **one of that small percentage who have risen to the very top of the field of endeavor**." — 8 C.F.R. § 204.5(h)(2)

Two phrases carry STEM cases. **"Field of endeavor"** — narrow enough that a peer group exists, broad enough to be a field (Chapter 4). And the Manual's explicit statement that a person **"may be very young or early in his or her career"** and still show sustained acclaim. A third-year postdoc with an exceptional record is not too early. A tenured professor with a modest one is not automatically enough.

Two pathways in

- **Pathway A — one-time achievement.** A major, internationally recognized award; the regulation's own example is the Nobel Prize. There is no comparable-evidence substitute for this pathway.
- **Pathway B — three of ten criteria.** Your road. Meet at least three — or evidence properly argued as comparable to them.

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Then: the two-step test

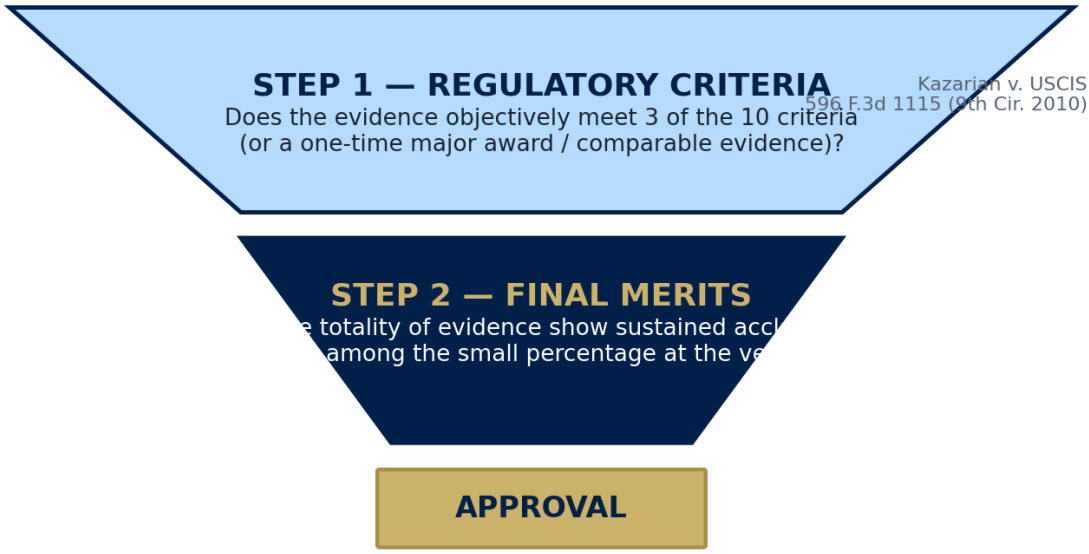


Figure 2.1 — The Kazarian two-step analysis.

Step 1 is mechanical: do the documents objectively meet three criteria? Step 2 is the verdict, weighing **everything together** — including evidence that fits no criterion. Meeting three criteria **"alone does not establish"** eligibility. Nearly every STEM denial that reaches an appeal is a Step-2 denial: the officer concedes the papers, concedes the reviews, and finds the record does not place the petitioner at the very top of the field.

Three rules that shape STEM cases

- **Sustained means maintained.** A strong PhD followed by three quiet years invites the question. Build for the last 24 months.
- **Letters are not the cornerstone.** Academia runs on letters; this category discounts them. They "should not form the cornerstone" and must be corroborated by documents.
- **Volume is not persuasion.** A 40-paper list without context is weaker than six papers with citation percentiles, venue quartiles, and adoption evidence.

The bottom line

Three prongs. One definition. Two steps. Your papers get you through Step 1. Only context gets you through Step 2.

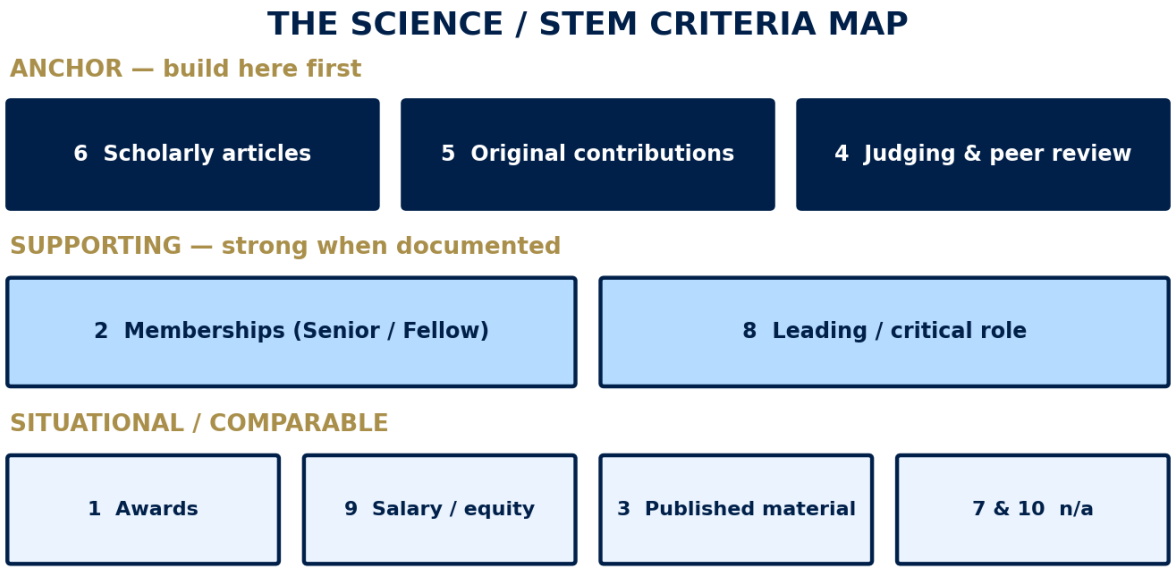
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CHAPTER

03

The Science & STEM Criteria Map

Where research careers become evidence.



Industry researchers without publications: anchor on 5 and 8, and bridge Criterion 6 via comparable evidence.

Figure 3.1 — The STEM Criteria Map. Anchor first, support second, situational last.

The three anchors

- **Criterion 6 — scholarly articles.** The most natural fit in the entire regulation for academics — and the one most often filed without context. Chapter 5.
- **Criterion 5 — original contributions of major significance.** The heavyweight. Where Step 2 is usually won or lost. Chapter 6.

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- **Criterion 4 — judging the work of others.** Peer review and program committees. Most researchers already qualify and keep no records. Chapter 7.

The two supports

- **Criterion 2 — memberships.** IEEE Senior Member and Fellow, and equivalent elected grades in learned societies, where the bylaws require outstanding achievement judged by recognized experts. Chapter 7.
- **Criterion 8 — leading or critical role.** PI, technical lead, group leader — for an institution or division with a distinguished reputation, proven by rankings and government research grants. Chapter 8.

The situationals

- **Criterion 1 — awards.** Best-paper awards at top-tier conferences, national society prizes, competitive fellowships — with a dossier proving selectivity.
- **Criterion 9 — salary or equity.** Levels-based compensation against occupational wage percentiles; startup equity for founder-researchers.
- **Criterion 3 — published material about you.** Science journalism about your work that names and substantially discusses you — not a university press release.
- **Criteria 7 & 10.** Not applicable. Since October 2024, a technical demo or trade-show booth is expressly not an "artistic exhibition." Never claim Criterion 7.

The industry researcher's map

If you have shipped systems rather than published papers, invert the map. Anchor on **Criterion 5** (deployed impact at scale) and **Criterion 8** (technical leadership at a funded, reputable organization). Then bridge Criterion 6 through comparable evidence — USCIS's own example is a **presentation at a major trade show** — and Criterion 9 through equity. Chapter 8 is your chapter.

> **Strategy note — the 4–6 rule**
>
> Three criteria is the legal floor, not the target. Approved STEM petitions typically evidence four to six. A petition built on "three papers, three reviews, one membership" with no context is a petition built for a Step-2 denial.

Your first pass

Criterion	✓ Have it	⚠ Partial	✗ No
6 — Scholarly articles			

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Criterion	✓ Have it	⚠️ Partial	✗ No
5 — Original contributions			
4 — Judging & peer review			
2 — Memberships (Senior / Fellow)			
8 — Leading / critical role			
1 — Awards			
9 — Salary / equity			
3 — Published material about me			

The bottom line

Academics anchor on 6, 5, and 4. Industry researchers anchor on 5 and 8, and bridge the rest. Both must survive Step 2.

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CHAPTER
04

Defining Your Field of Endeavor

Top of what, exactly?

"Field of endeavor" is the denominator of your case. Define it as **"science"** and you claim to be among the top few percent of every scientist alive — indefensible. Define it as **"graph neural networks for lithium-ion degradation prediction"** and an officer may reasonably find the peer group manufactured. Precise, honest, stable.

The formula

The AiVass field formula

[Discipline or method] + [application domain] + [scale or context]

Too broad	Defensible	Too narrow
Science	Computational structural biology of membrane proteins	Cryo-EM of one receptor family in one organism
Machine learning	Machine learning for medical image analysis	Attention-head pruning in one segmentation architecture
Engineering	Power-electronics design for grid-scale energy storage	Inverter thermal modeling for one product line
Materials	Perovskite photovoltaics and device stability	Encapsulation for one cell geometry
Public health	Infectious-disease epidemiology and outbreak modeling	Contact-tracing modeling for one municipality

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Four tests for your definition

1. **The peer test.** Name the top few percent: the researchers, their institutions, their venues, their honors. If you cannot name them, an officer cannot place you among them.
2. **The baseline test.** Can you find published citation and venue statistics for this field? If your field is so narrow no baseline exists, you have defined a project, not a field.
3. **The verbatim test.** The identical phrase appears in the cover letter, every criterion section, the final-merits argument, and every letter brief.
4. **The stress test.** If an officer widened or narrowed the field one notch, does the evidence still fit? Document a fallback definition before you file.

The industry researcher's field

Do not define your field as your employer's product. The company is evidence, not identity. Anchor on **discipline + application domain** — "distributed systems engineering for real-time payments infrastructure" — so that your peer group is practitioners across the industry, not colleagues on your team. Then your deployed work becomes evidence of standing **within that field**, which is exactly the question at Step 2.

The interdisciplinary trap

Genuinely interdisciplinary researchers — computational biologists, ML-for-materials scientists — face a real risk: claiming both parent fields dilutes the evidence across two peer groups and two citation baselines. Choose the field where your acclaim **actually lives**, and present the second discipline as the method you brought to it. "Machine learning applied to protein structure prediction" is one field. "Machine learning and structural biology" is two, and you will be measured against the top of both.

The intent connection

Prong 2 requires intent to continue in the **area of your extraordinary ability**. No job offer is required. STEM evidence of intent: a personal statement describing your intended U.S. research program; offer or continuation letters; grant applications naming you; collaboration agreements; conference commitments; and, for founder-researchers, a business plan and term sheets.

> **The bottom line**
>
> Write your field in one sentence today. If no citation baseline exists for it, it is too narrow. If you cannot name its top 3%, it is too broad.

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CHAPTER

05

Criterion 6 Masterclass

Scholarly articles — and the context that makes them count.

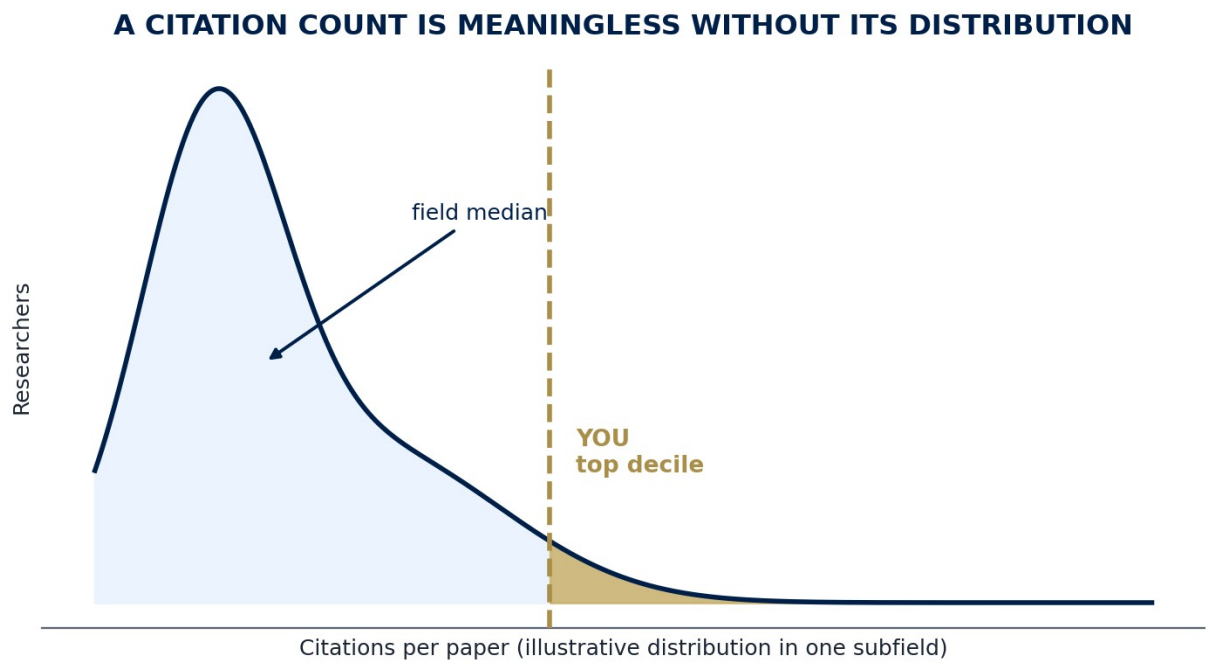
> **In the regulation — 8 C.F.R. § 204.5(h)(3)(vi)**
>
> *"Evidence of the alien's authorship of scholarly articles in the field, in professional or major trade publications or other major media."*

USCIS defines a scholarly article as one reporting original research, experimentation, or philosophical discourse, written by a researcher or expert, **generally peer reviewed**, typically with footnotes or a bibliography. Peer-reviewed conference proceedings count — decisive in computer science, where top conferences outrank journals.

Step 1 is easy. Step 2 is the whole fight.

Two peer-reviewed papers satisfy this criterion mechanically. They will not carry final merits. What carries final merits is **context** — and the Manual demands it explicitly, requiring you to explain the **methodology and source** behind any bibliometric tool you cite. An h-index dropped into a cover letter, unexplained, is worth nothing.

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File the baseline, the source, and the methodology. The percentile is the claim; the number alone is not.

Figure 5.1 — The number is not the claim. The percentile is the claim.

The citation-context memo

Build this once. It becomes the backbone of both Criterion 6 and your final-merits argument.

What to file	Why it matters
Total citations and per-paper citations, from a named database, with the retrieval date	The raw figure — meaningless alone
The field baseline: mean or median citations for papers in your subfield and publication years	The denominator. Without it the officer has no scale
Your percentile placement, computed and shown step by step	The claim itself
Venue quality: impact factor, quartile, or conference acceptance rate, with the source	Step-2 factor named by USCIS: "high-impact venues"
Author position — sole, first, corresponding, or senior	Your actual contribution
h-index with the database, date, and the methodology explained	Required by the Manual if cited at all

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WHERE TO FIND DEFENSIBLE BASELINES

- Bibliometric databases that publish field-normalized indicators — cite the indicator and its definition, not just the number.
- Published scientometric studies of citation distributions in your subfield.
- The journal's own published citation distribution, where available.
- Never a self-computed baseline with no source. An officer cannot verify your arithmetic on unpublished data.

The h-index caveat

Strategy note — use it, but never alone

The h-index is field-dependent, career-length-dependent, and database-dependent. The same researcher can score 14, 19, and 22 across three databases. File it with the database name, the retrieval date, an explanation of what it measures, and — critically — a comparison to h-indices of researchers at the top of your field. An h-index without a comparator invites the response: "compared to whom?"

Screening venues

- ☐ Every journal screened against recognized indexing and predatory-publisher lists.
- ☐ Conference acceptance rates documented for every proceedings paper filed.
- ☐ No preprint counted twice alongside its published version.
- ☐ Retracted or corrected work disclosed, not concealed.
- ☐ For each venue: quartile, impact factor, or acceptance rate, with the source cited.

RFE radar

Step-1 RFEs on Criterion 6 are rare. The killer arrives at Step 2: "the beneficiary's publication and citation record has not been shown to be indicative of a person at the very top of the field." Only the citation-context memo answers that — filed proactively, in the initial petition.

The bottom line

Filing your publication list is not evidence. Filing your publication list against the field's distribution is.

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CHAPTER

06

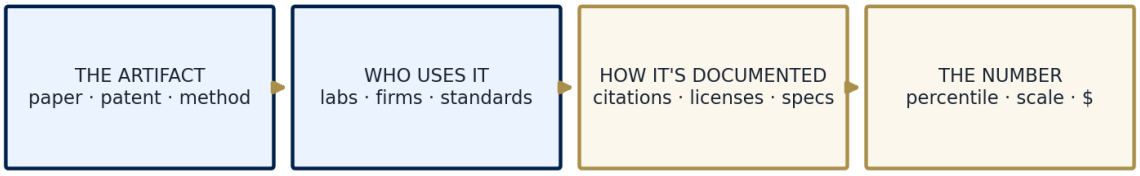
Criterion 5 Masterclass

Original contributions of major significance.

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(v)**
>
> *"Evidence of the alien's original scientific, scholarly, artistic, athletic, or business-related contributions of major significance in the field."*

Two elements, proven separately. **Original** — it did not exist before you made it. **Of major significance to the field** — the field, not your lab, not your product line. USCIS states plainly that funding, patents, or publication may prove originality but **"will not necessarily establish, on its own"** major significance. This single sentence explains most STEM RFEs.

THE SIGNIFICANCE MAP — originality is not significance



USCIS: funding, patents, or publication may prove originality but "will not necessarily establish, on its own" major significance.

Figure 6.1 — Build one Significance Map per contribution.

Proving significance — the four evidence types

1. **Citation-based influence.** Not your total count — the specific papers that cite this contribution, who wrote them, and what they say your work enabled. Pull the citing passages.

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2. **Adoption beyond your group.** Other labs, companies, standards bodies, clinical guidelines, or open-source dependents using your method, dataset, or tool. Named, with documents.
3. **Commercialization and deployment.** Licensing, products shipped, systems in production, regulatory clearance, revenue attributable to the work — with a source document per figure.
4. **Corroborated expert testimony.** Letters describing the contribution, its significance, and the writer's basis of knowledge — each claim matched to a document already in the file.

From CV language to evidence language

CV language (fails)	Evidence language (works)
"Developed a novel deep-learning architecture."	"Introduced the sparse-attention decoder now implemented in three open-source frameworks (Exhibits 5.2–5.4) with 41,000 cumulative downloads; cited 214 times, placing the paper in the top 2% of publications in its subfield and year (Exhibit 5.1 methodology)."
"Made significant contributions to catalyst design."	"Discovered the Ni-doped support structure adopted by two industrial producers under license (Exhibit 5.6 license schedule), raising conversion efficiency 18% at pilot scale (Exhibit 5.7 third-party test report)."
"Holds several patents."	"Patent US-X is cited by 37 subsequent patents held by 11 companies (Exhibit 5.9), and the claimed method is incorporated into IEEE Standard [n] § 4.2 (Exhibit 5.10)."

The Significance Map

Artifact	Adopters outside my group	Metrics	Independent documentation	Exhibit
Paper · patent · method · tool	Labs · firms · standards · guidelines	citations · %ile · users · $ · scale	citing passages · licenses · specs	5.x

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Patents, standards, and clinical translation

- **Patents.** Grant proves originality. Significance needs forward citations by other patents, licensing, commercialization, or standards incorporation. Pending applications need detailed corroborating reference letters.
- **Standards.** Incorporation of your method into an industry or international standard is among the strongest significance evidence available. File the clause, not just the standard number.
- **Clinical and regulatory.** Inclusion in a treatment guideline, or a cleared or approved device or assay built on your work, is field-level significance with a paper trail.
- **Open source and datasets.** Dependents, downloads, corporate adopters, and benchmark usage — clean, verifiable adoption metrics.

The confidentiality problem

Industry researchers face NDAs and trade secrets. Solutions that work: aggregate metrics without client names; redacted contracts; letters from counterparties confirming scale without disclosing terms; third-party analyst coverage; and public artifacts — standards, patents, conference talks — that reveal the contribution without the commercial detail.

RFE radar

The classic denial concedes originality and rejects significance: "the record does not establish that the beneficiary's contributions have been of major significance in the field as a whole." Preempt it. Every contribution gets a Significance Map. Every metric gets a source document. Never let letters carry this criterion alone.

The bottom line

Originality is what you discovered. Major significance is what the field did with it. Only the second wins Criterion 5.

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CHAPTER
07

Peer Review & Memberships

Criteria 4 and 2 — standing among experts.

Criterion 4 — judging the work of others

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(iv)**
>
> *"Evidence of the alien's participation, either individually or on a panel, as a judge of the work of others in the same or an allied field of specialization …"*

Most researchers satisfy this several times a year and keep no records. The Manual's own example makes the requirement precise: a request to review **plus** confirmation the review was completed. An invitation alone is **not enough**.

WHERE STEM RESEARCHERS FIND IT

- Peer reviewer for journals — keep the editor's thank-you or the reviewer-dashboard record.
- Program committee member or reviewer for conferences — file the acceptance rate and the published PC roster.
- Grant review panels for government agencies or foundations.
- Doctoral thesis examiner or committee member at other institutions.
- Standards-body technical review; benchmark or challenge judging.
- Editorial board membership — file the appointment and the board roster.

THE JUDGING LOG

Build a cumulative table: venue, year, number of manuscripts or proposals evaluated, and the venue's selectivity. Present a table, not fifteen loose emails. Judging of **any caliber** satisfies Step 1; at Step 2 the officer asks whether it reflects top-of-field standing — which is why the acceptance rate of the conference matters as much as the fact of reviewing for it.

- ☐ Invitation naming me as reviewer, panelist, or examiner.

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- ☐ Proof of completion for every entry.
- ☐ Venue prestige documented: acceptance rate, impact factor, agency name.
- ☐ A cumulative judging table filed as a single exhibit.

Criterion 2 — memberships

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(ii)**
>
> *"Documentation of the alien's membership in associations in the field for which classification is sought, which require outstanding achievements of their members, as judged by recognized national or international experts in their disciplines or fields."*

Three elements: the association is in your field; membership **at the grade you hold** requires outstanding achievements; and those achievements are judged by recognized experts. Dues-paying membership never qualifies. Elected grades frequently do.

THE STEM MEMBERSHIPS THAT WORK

- **IEEE Senior Member.** Requires significant performance over a period of years plus references from existing Senior Members or Fellows, reviewed by a panel. File the bylaws and the elevation criteria.
- **IEEE Fellow.** Elected by the Board on evaluation of extraordinary accomplishment; capped annually at a fraction of one percent of the voting membership. File the cap.
- **Elected fellowships of national academies and learned societies.** File the election statistics and the nominating and voting process.
- **Association for Computing Machinery and similar distinguished/fellow grades.** Same evidence pattern: bylaws, judging body, selectivity.

Two clarifications from the current guidance. **Past memberships count** at Step 1 — since October 2024, USCIS accepts membership held previously, with recency weighed later under sustained acclaim. And the association's judging must be by **recognized experts** — a membership committee of staff administrators does not satisfy the criterion.

WHAT TO FILE, EVERY TIME

- ☐ The bylaws or elevation criteria for the specific grade held.
- ☐ The composition of the evaluating body, showing recognized experts.
- ☐ Election or elevation statistics: candidates versus admitted, or the annual cap.
- ☐ Your certificate of election, dated.

> **RFE radar**

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Two predictable challenges: "membership does not require outstanding achievements" (you filed the association's general membership page instead of your grade's bylaws), and "the judging body has not been shown to comprise recognized experts." Both are documentation problems, solved before filing.

The bottom line

You are already reviewing. Start logging it today. And if your society has an elected grade, apply this year — it is the single most efficient criterion to add.

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CHAPTER

08

Leadership, Salary & the Industry Bridge

Criteria 8, 9, and comparable evidence for researchers who ship.

Criterion 8 — leading or critical role

> **In the regulation — 8 C.F.R. § 204.5(h)(3)(viii)**
>
> *"Evidence that the alien has performed in a leading or critical role for organizations or establishments that have a distinguished reputation."*

Two elements: a **leading OR critical** role — for an organization **or a division or department of one** — and that entity's **distinguished reputation**.

WHAT USCIS NAMES FOR RESEARCH ORGANIZATIONS

- **National rankings.** Carnegie R1/R2 classification for U.S. institutions; recognized global rankings otherwise.
- **Government research grants.** Competitively awarded, peer-reviewed funding held by the institution or your division.
- **Startups: significant funding** from government, venture capital, or angel investors, commensurate with stage and industry — a positive reputation factor for deep-tech founders.
- **Scale, longevity, media, and output.** Relevant, but explicitly not decisive on their own.

THE CRITICAL PRONG, FOR RESEARCHERS

"Critical" turns on performance of significant importance to the outcome — a supporting role can be critical. This is how a staff scientist, a technical lead, or a co-investigator wins Criterion 8 without directing a lab. The proof is the **but-for outcome**, with a number.

> **Strategy note — the but-for sentence**

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"Without [name]'s [specific work], [organization or division] would not have [specific outcome], measured by [number]."

"Without Dr. Ferreira's reformulation of the assay's reagent chemistry, the Center would not have obtained FDA clearance on first submission, nor licensed the platform to two diagnostics manufacturers."

Evidence of experience must consist of letters from employers (8 C.F.R. § 204.5(g)(1)). Brief them with metrics; never draft the letter.

Criterion 9 — salary and equity

A benchmarking exercise, not a bragging exercise. The number matters only **in relation to others in the field** — same occupation, same geography, same seniority. Two clarifications help scientists:

- **"Has commanded" does not require money already banked.** A credible signed offer showing prospective compensation can qualify.
- **Startup equity.** Highly valued equity may be argued as evidence comparable to a high salary — file the cap table, the grant agreement, and a dated valuation (priced round or 409A), with the arithmetic shown.

1. Fix the comparator: the correct occupational classification, geography, and level.
2. Pull the distribution: government occupational wage data plus a reputable industry compensation survey. File the methodology, not a screenshot.
3. Compute the percentile. Target documented top ~10%.
4. Assemble total compensation — base, bonus, equity — each with a supporting document.

Strategy note — when to skip Criterion 9

Postdoc salaries are ordinary by design. Filing Criterion 9 on one invites an officer to write a paragraph explaining that you are not exceptionally remunerated. Three strong criteria beat four with a soft one. Skip it deliberately.

The industry researcher's bridge

In the regulation — 8 C.F.R. § 204.5(h)(4)

"If the above standards do not readily apply to the beneficiary's occupation, the petitioner may submit comparable evidence to establish the beneficiary's eligibility."

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"Readily" means **easily**. A criterion need not be entirely inapplicable to your occupation — only not easily applicable. And USCIS supplies the two examples industry scientists need most.

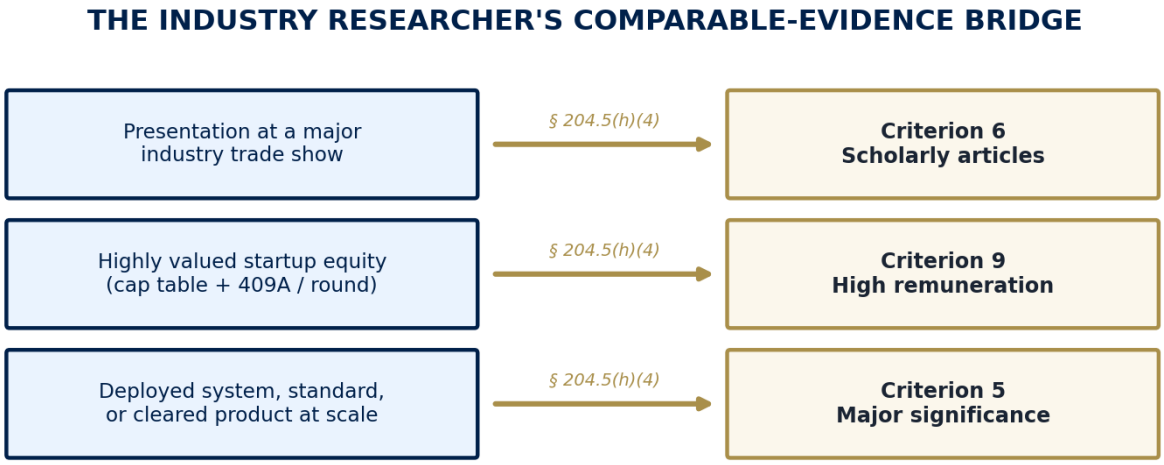


Figure 8.1 — The bridge, built on the Policy Manual's own examples.

THE FOUR-MOVE DRAFTING PATTERN

1. Name the criterion you are substituting for — "Criterion 6, scholarly articles."
2. Prove why it does not readily apply to your occupation, with support: industrial R&D is protected by trade secret and NDA; the field's recognized dissemination venue is the industry conference, not the journal.
3. Present the substitute evidence in full: the trade-show keynote, its audience, its selection process, its standing.
4. Argue equivalence of significance — not similarity of form. A keynote before 12,000 practitioners reaches the field's learned audience the way a journal article reaches researchers.

RFE radar

Officers reject comparable evidence when the listed criterion plainly applied. Do not argue that scholarly articles "don't apply" if you have published any. Argue it in the initial filing, never after the RFE. And remember: there is no comparable evidence for the one-time-achievement pathway.

The bottom line

If your work shipped instead of publishing, the bridge is not a workaround. It is the regulation, and USCIS wrote your examples into it.

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CHAPTER
09

Final Merits & the Evidence Sprint

From five checkmarks to one verdict — in 180 days.

Winning Step 2

You meet five criteria. Nothing is decided. Step 2 weighs the **totality** — including evidence that fits no criterion — and asks whether you sit among the small percentage at the very top. Nearly every serious STEM denial is decided here.

USCIS wrote your outline

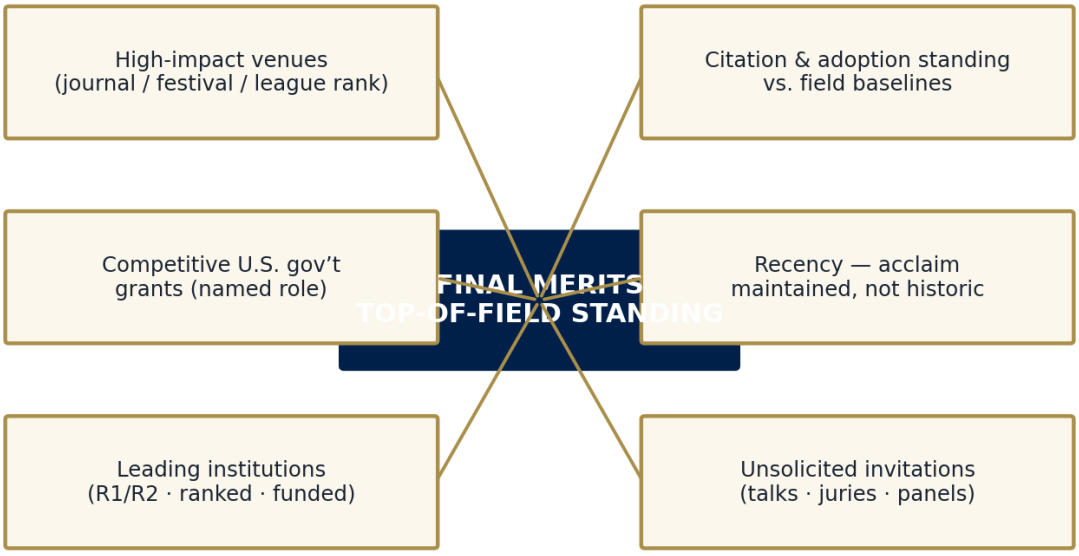


Figure 9.1 — Positive final-merits factors named by USCIS in its STEM guidance.

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- **Publication in high-impact venues.** Quartile, impact factor, or acceptance rate — with the source.
- **Citation rate relative to others in the field.** The percentile, with methodology. Chapter 5.
- **Position at a leading institution.** Rankings and government research grants. Chapter 8.
- **Unsolicited invitations to speak.** Keep the invitation email. "Unsolicited" is the operative word — a submitted abstract is not an invitation.
- **Named on competitive U.S. government grants.** As investigator or named researcher, on a peer-reviewed, competitively awarded grant.
- **Adoption of your work.** Standards, guidelines, products, dependents — the significance evidence of Chapter 6.

THE FINAL-MERITS ARGUMENT, IN SEVEN MOVES

1. Restate the standard — the two-step framework and the "small percentage at the very top" definition.
2. Define the peer group concretely — the researchers, institutions, venues, and honors that mark the top of your field.
3. Synthesize, do not repeat — one arc: recognition → influence → standing.
4. Place yourself with comparatives — citation percentile, venue quartiles, h-index against field leaders, adoption counts.
5. Prove the acclaim is national or international, not institutional.
6. Show the trajectory is alive — your last 24 months of recognition, named.
7. Land the U.S. benefit — research produced, technology deployed, students trained, competitiveness gained.

Letters — the independence rule

Academia runs on letters; this category discounts them. The Manual: witness statements **"should not form the cornerstone"** of the claim, must be corroborated by documents, and acclaim should extend **beyond your personal and professional acquaintances**. Practically:

- Six to eight letters, majority from independent experts — researchers who have cited you but never co-authored with you, never advised you, never employed you.
- Establish each writer's own standing before their opinion of you.
- Assign each letter two to four specific criteria, with corroborating documents already in the file.
- Ask for one comparative sentence: where you stand against the field's top tier, in the writer's professional judgment.

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- Brief with facts and metrics. Never draft the letter — the Manual instructs officers that definition-reciting letters "are generally not persuasive."

The 30 / 90 / 180-day sprint

DAYS 0–30 — INVENTORY AND MAP

- Write your field of endeavor in one sentence. Stress-test it (Chapter 4).
- Build the citation-context memo: counts, baseline, percentile, venue quality, methodology (Chapter 5).
- Convert your CV into a criteria-tagged evidence list.
- Pull rankings and government-grant records for your institution — and separately for your division.
- Score yourself with the Chapter 12 matrix; identify your two anchors and two weakest criteria.

DAYS 31–90 — BUILD AND REQUEST

- Volunteer to review for two journals and one conference program committee. Keep the invitation and completion proof.
- Apply for the elected grade your society offers — IEEE Senior Member or equivalent. Request the bylaws first.
- Pull the citing passages for your key papers and identify which independent authors could write for you.
- Write to labs, companies, and standards bodies using your method; request factual adoption letters with scale and outcome.
- Send letter-writer briefing memos with documents attached.

DAYS 91–180 — PROVE AND ASSEMBLE

- Build the Significance Map for each contribution (Chapter 6).
- Build the judging log and the memberships dossier (Chapter 7).
- For industry researchers: draft the comparable-evidence argument in full (Chapter 8).
- Collect 6–8 letters; assemble exhibits numbered by criterion; then professional review, then file.

> **Strategy note — the patience rule**
>
> The most expensive mistake in EB-1A is filing three months early. Fellow elections happen annually. Adoption letters take weeks. If you sit at two solid criteria and three maybes, a 90-day build converts maybes into exhibits. Denials cost more than patience — in money, in time, and in the record you carry into your next filing.

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The bottom line

USCIS published the scorecard. Publications, citations, institution, invitations, grants, adoption. Answer all six with documents and Step 2 answers itself.

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CHAPTER

10

Filing, Fees & Timing

Mechanics, money, and the one variable you do not control.



Timelines vary by case, service center, and country of chargeability — always check the current Visa Bulletin.

Figure 10.1 — The EB-1A journey, end to end.

The filing

EB-1A runs on **Form I-140**. A standalone I-140 can be filed online; if you file premium processing or other forms together, file by mail. Approval sets your **priority date** — your place in line, which controls everything after.

Costs

> **Snapshot — fees as verified July 2026**
>
> **Form I-140 filing fee:** $715
>
> **Asylum Program Fee (paid with the I-140):** $600 standard · $300 for small employers (25 or fewer full-time-equivalent employees — the bracket most individual self-petitioners fall into) · $0 for nonprofits. Paying the wrong tier causes rejection at intake.

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Premium processing (Form I-907, optional): 15-business-day adjudication window; a fee adjustment applies to filings postmarked on or after March 1, 2026 — currently $2,965 for the I-140.

Payment method: USCIS has moved away from paper checks and money orders for mailed filings — pay by card (G-1450) or ACH (G-1650) unless exempt.

Fees change. Confirm at uscis.gov/feecalculator and on the current Form G-1055 before you send anything.

Timing

- **Preparation:** 2–6 months of evidence building and drafting. The part you control, and the part that decides the outcome.
- **Adjudication:** 15 business days with premium processing; otherwise months, varying by service center. Premium buys speed, not favor — the standard is identical.
- **After approval:** Form I-485 (adjustment of status, if you are in the U.S. and your date is current) or consular processing abroad.

The Visa Bulletin

Snapshot — July 2026 Visa Bulletin (EB-1)

Worldwide, Mexico, Philippines: Current — no wait for a visa number.

China: Final Action Date of June 1, 2023 (advanced two months).

India: Final Action Date of October 15, 2022 — retrogressed two months; the Department of State has warned of possible further retrogression before the fiscal year ends September 30, 2026.

Context: EB-2 India is unavailable for the remainder of FY2026 — the single strongest reason Indian-born researchers are moving from EB-2 NIW toward EB-1A and filing early to secure a priority date.

A snapshot, not a forecast. Check travel.state.gov monthly — the bulletin is the most volatile fact in this guide.

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The dual-track decision



Figure 10.2 — EB-1A and EB-2 NIW are not mutually exclusive.

Most STEM researchers are eligible for both EB-1A and EB-2 NIW. NIW applies the **Matter of Dhanasar** three-prong test — substantial merit and national importance, well positioned to advance the endeavor, and a national-interest waiver of the job-offer requirement. It asks less of your acclaim. It also lands you in EB-2, which for Indian and Chinese nationals is currently the substantially slower queue.

Filing both preserves the earlier priority date and hedges the higher bar. It is a recognized strategy, not a hedge of last resort — and it is a decision to make with counsel, on your specific facts and chargeability.

Working with an attorney

This guide is designed to make you a better client, not to replace counsel. AiVass is not a law firm. What changes when you arrive prepared:

- You bring a criteria matrix and a citation-context memo, not a CV — the engagement starts at strategy, not triage.
- Your evidence is already quantified and sourced, so billable hours go into argument, not chasing documents.
- You can evaluate a quote intelligently: a firm that cannot explain its Step-2 theory of your case is not the firm.

The bottom line

You control preparation quality and filing date. You do not control the bulletin. Build well, file when ready, verify fees and policy the week you send.

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CHAPTER
11

Expert & B2B Annex

For attorneys, paralegals, legal-ops teams, and in-house mobility.

This chapter is operational. It assumes professional familiarity with the standard and focuses on repeatable workflow for STEM-profile EB-1A matters: intake, assessment, gap remediation, exhibit architecture, and pre-filing QC.

Intake questionnaire — STEM profile

Section	What to capture	Why it matters
Profile type	Academic or industry researcher — publications vs. deployed systems	Determines which criteria anchor the case (Ch. 3)
Field definition	One-sentence field; named peer group; citation baseline must exist for it	Denominator; interdisciplinary dilution risk
Bibliometrics	Citations, per-paper counts, database + retrieval date, field baseline, percentile, h-index methodology	Criterion 6 + the decisive Step-2 factor
Venues	Impact factor, quartile, conference acceptance rate; predatory-venue screen	"High-impact venues" — named USCIS factor
Contributions	Each artifact; adopters outside the group; citing passages; standards/licenses; metrics	Criterion 5 — highest RFE exposure
Judging	Review invitations + completion proof; PC rosters; grant panels; editorial boards	Criterion 4
Memberships	Grade held; bylaws; evaluating body; election statistics or annual cap	Criterion 2 — IEEE Senior/Fellow and equivalents
Institution	Carnegie R1/R2 or global ranking; government research grants; startup funding	Criterion 8 — factors USCIS names
Role	Appointment, reports, budget, decision rights, but-for outcome	Criterion 8; § 204.5(g)(1) employer letters

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Section	What to capture	Why it matters
Compensation	Levels-based comp; occupational wage percentiles; equity + dated valuation	Criterion 9 or the equity bridge
Comparable evidence	Industry profiles: why Criterion 6 does not readily apply; the substitute and equivalence argument	§ 204.5(h)(4) — argue in the initial filing
Invited talks	Unsolicited invitations, with the invitation preserved	Named Step-2 factor
Grants	Named on competitive, peer-reviewed U.S. government grants	Named Step-2 factor
Recency	All recognition within the last 24 months	Sustained acclaim at Step 2

Criteria assessment matrix

Score each criterion twice — Step 1 (does the evidence objectively meet the regulatory terms?) and Step 2 (does it carry weight toward top-of-field?). A criterion can pass Step 1 and contribute almost nothing at Step 2.

#	Criterion	Step 1: met?	Step 2: weight	Gap / remediation	Owner	Due
6	Scholarly articles					
5	Original contributions					
4	Judging & peer review					
2	Memberships					
8	Leading / critical role					
1	Awards					
9	Salary / equity					
3	Published material					

Exhibit index architecture

- Number by criterion: 3.1, 3.2 … 5.1, 5.2 … so any claim is verifiable in seconds.

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- One cover sheet per exhibit: what it is, which criterion element it satisfies, what it proves.
- Certified translations for all foreign-language documents; full papers, never abstracts.
- Web evidence captured with URL and access date visible in the capture.
- Order criterion sections by evidentiary strength — not regulatory order.

Pre-filing QC checklist

☐ Field of endeavor stated identically in the cover letter, every criterion section, and every letter.

☐ Citation-context memo filed: counts, database, retrieval date, field baseline, percentile, methodology.

☐ Any h-index cited is accompanied by its database, date, methodology, and a comparator.

☐ Every venue screened for predatory publishing; quartile or acceptance rate filed per item.

☐ Criterion 5: a Significance Map per contribution, with adopters outside the beneficiary's group.

☐ Criterion 5: citing passages pulled — not just citation totals.

☐ Criterion 4: completion proof, not invitations only; judging log filed as one exhibit.

☐ Criterion 2: bylaws for the specific grade held; evaluating body shown to comprise recognized experts.

☐ Criterion 8: rankings and government research grants filed for the correct entity.

☐ Criterion 9: comparator occupation and geography verified; equity valuation dated and sourced.

☐ Comparable evidence: non-applicability argued per-occupation, mapped to a named criterion.

☐ Unsolicited invitations preserved as invitations — not as programs.

☐ Letters: independent-majority (no co-authors, advisors, or employers in the majority), distinct voices, each claim corroborated.

☐ Recency: documented recognition within the last 24 months.

☐ Fees verified on the current G-1055; Asylum Program Fee tier correct.

☐ Policy Manual updates page checked within 30 days of filing.

RFE risk register — STEM profiles

Criterion 6 / final merits: "publication and citation record not shown to be indicative of the very top of the field." Remedy: the citation-context memo — baseline, percentile, methodology, venue quality.

Criterion 5: "originality conceded; major significance not established." The most common STEM RFE. Remedy: Significance Map, citing passages, adoption outside the group, standards or licenses.

Criterion 4: "participation as a judge not established." Remedy: completion proof for every entry.

Criterion 2: "membership does not require outstanding achievements" (general membership page

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filed instead of the grade's bylaws).

Criterion 8: "organization not shown distinguished." Remedy: Carnegie R1/R2 or global ranking, plus competitively awarded government research grants.

Comparable evidence: "the listed criterion readily applies." Remedy: reserve the bridge for genuine occupational mismatch; argue specifically, with support.

Final merits: "meets criteria but record does not establish top of field." Remedy: answer USCIS's own six factors — venues, citations, institution, invited talks, grants, adoption.

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CHAPTER

12

Myths, Red Flags & Your Self-Assessment

Score the record you have. Then build the record you need.

Eight myths that keep qualified scientists from filing

The myth	The reality
"You need a Nobel Prize."	That is the one-time-achievement pathway. The other road is 3 of 10 criteria, and it is the road nearly everyone takes.
"Industry engineers without papers can't file."	Comparable evidence exists for exactly this. USCIS's own example: a trade-show presentation substituting for scholarly articles.
"An approved O-1 means an approved EB-1A."	A prior O-1 is "a relevant consideration … not determinative." The immigrant standard is higher.
"More papers beats better context."	USCIS warns voluminous documentation may not be persuasive. Six papers with percentiles beat forty without.
"My h-index alone proves I'm top of field."	The Manual requires the methodology and source behind any bibliometric tool. An unexplained h-index is not evidence.
"I need a U.S. employer to sponsor me."	No job offer is required. You self-petition. No PERM.
"I'm only a postdoc — too early."	The Manual states a person may be very young or early in their career and still show sustained acclaim.
"NIW is easier, so it's better."	Lower bar, far longer queue. For Indian and Chinese nationals, EB-2 is currently the slower door. Consider filing both.

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Ten red flags to fix before you file

- ☐ A citation count filed with no field baseline and no percentile.
- ☐ An h-index with no database, no date, no methodology, and no comparator.
- ☐ Publications in venues you have not screened for predatory practices.
- ☐ Criterion 5 claimed on patents or funding alone — originality without significance.
- ☐ Peer review claimed on invitations, with no proof of completion.
- ☐ A membership filed with the association's general membership page instead of the grade's bylaws.
- ☐ A Criterion 7 claim built on a poster session, tech demo, or conference booth.
- ☐ Letters from your PhD advisor, your co-authors, and your current PI — with no independent voice.
- ☐ Impact confined to your own lab or your own product line.
- ☐ No documented recognition within the last 24 months.

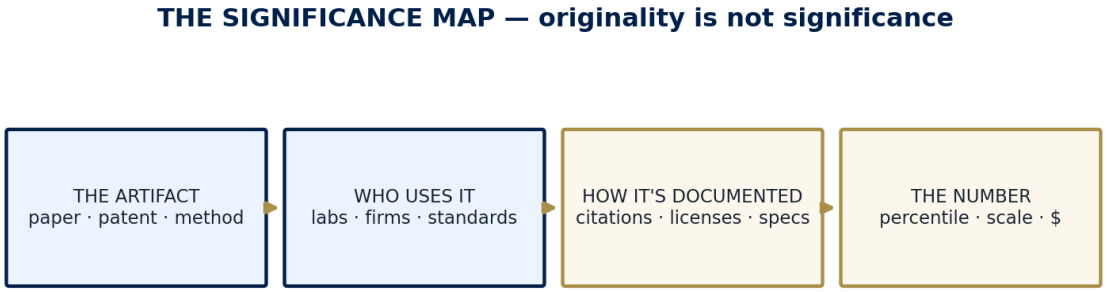
Case-positioning questions

Answer these in writing before you draft anything. If an answer has no source document, that is your next 90 days.

1. What is the citation baseline for your subfield, and what percentile do you occupy? What is your source?
2. Which of your contributions is used by a lab, company, or standards body you have never worked for?
3. Who has cited your work and said, in the citing passage, what it enabled?
4. How many manuscripts or proposals have you reviewed, and can you prove you completed each?
5. Does your society have an elected grade — and have you applied?
6. Is your institution or division nationally ranked, and does it hold competitive government research grants?
7. Which speaking invitations were unsolicited, and do you still have the invitation?
8. If an officer asked you to name the top 3% of your field, could you? Are you among them, and why?

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The self-assessment scorecard



USCIS: funding, patents, or publication may prove originality but "will not necessarily establish, on its own" major significance.

Figure 12.1 — The question behind every score: did the field use it? Score honestly.

Component	Points	Your score
Three or more criteria fully evidenced (documents in hand)	30	
Citation percentile computed against a sourced field baseline	15	
Adopters of your work outside your own group, named and documented	15	
Judging completed and logged, with venue selectivity	10	
Institution or division ranking + government research grants documented	10	
Documented recognition within the last 24 months	10	
Six to eight letter writers identified, independent-majority	10	
Total	100	

Score	Where you stand	What to do next
75–100	Strong. Context filed, significance proven, final-merits story intact.	Assemble exhibits and seek professional review. Your remaining work is curation and narrative.
50–74	Buildable. The foundation is real; the proof has gaps.	Run the 90/180-day sprint (Chapter 9) against your weakest criteria. Do not file yet.
30–49	Early. Real research, insufficient field-level acclaim.	Spend 12–24 months building: peer review, elected membership, adoption outside your group,

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Score	Where you stand	What to do next
		invited talks. File EB-2 NIW in parallel with counsel.
Below 30	Not yet.	This is information, not a verdict. Build the record, or discuss other categories with an attorney.

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Where to Go From Here

This field guide sits inside the AiVass EB-1A library. Each companion product goes deep on one stage of the build.

Product	Best for	What it does
EB-1A Master Guide	Everyone	The full legal framework and all ten criteria — the foundation of this series.
Eligibility Self-Assessment Workbook	Beginners	Extends Chapter 12 into a full scored diagnostic with decision paths.
Evidence Mapping Workbook	DIY applicants	Turns the criteria masterclasses into a working evidence-to-criteria system.
Field of Endeavor Definition Guide	Professionals	Drills Chapter 4's formula — including the interdisciplinary trap.
Recommendation Letter Toolkit	Applicants & lawyers	Briefing memos, independence hierarchy, corroboration mapping.
Personal Statement Framework	Applicants	Structures intent, future U.S. work, and national benefit.
Petition Assembly Checklist	DIY applicants	Chapter 11's QC pass, exhibit by exhibit.
100 AI Prompts for EB-1A	Everyone	The prompt library for inventory, mapping, gap-scan, and quantification.
Law Firm Toolkit (B2B)	Immigration firms	Intake, criteria matrices, RFE risk register, team workflow at volume.

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Sources & Verification

Every legal statement in this guide traces to a primary authority below. All sources were accessed and verified on **July 8, 2026**. Practitioner commentary, where it informed context, is identified as secondary and non-authoritative.

Source	Publisher	Authority	What it governs here
USCIS Policy Manual, Vol. 6, Part F, Ch. 2 — Extraordinary Ability	USCIS	Primary — agency guidance	Eligibility, the ten criteria, comparable evidence, two-step analysis, final merits, letters, bibliometric methodology, and the STEM factor list.
8 C.F.R. § 204.5(h) and § 204.5(g)(1)	GPO / NARA	Primary — regulation	Definition of extraordinary ability, the ten criteria, comparable evidence, self-petition, employer-letter requirement.
INA § 203(b)(1)(A) · 8 U.S.C. § 1153(b)(1)(A)	U.S. Congress	Primary — statute	The three prongs: acclaim, continuing work, substantial benefit.
Employment-Based Immigration: First Preference EB-1 · uscis.gov	USCIS	Primary — agency	Self-petition confirmation; no PERM requirement.
Form I-140 page & instructions · Fee Schedule G-1055 · Fee Calculator	USCIS	Primary — agency	Filing mechanics, fees, Asylum Program Fee tiers, payment methods.
Policy Alerts, Sept. 12, 2023 and Oct. 2, 2024	USCIS	Primary — policy	STEM comparable evidence and final-merits factors (Sept. 2023); team awards, past memberships, published material (Oct. 2024).
Kazarian v. USCIS, 596 F.3d 1115 (9th Cir. 2010)	9th Circuit	Primary — judicial	The two-step evidentiary analysis applied nationwide.
Visa Bulletin, July 2026	U.S. Dep't of State	Primary — agency	Priority dates and retrogression. Volatile: re-check monthly.
17 U.S.C. § 105 · Georgia v. Public.Resource.Org (2020)	Congress / SCOTUS	Primary	Public-domain status of U.S. government works and legal edicts.
Immigration law-firm alerts and practitioner commentary (2024–2026)	Various	Secondary — non-authoritative	Context and cross-confirmation only. Never the basis of a legal statement in this guide.

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Final reminder

This guide is educational. It is not legal advice, and AiVass LLC is not a law firm. Before filing, have a licensed U.S. immigration attorney review your petition, and verify every fee, date, and policy statement at uscis.gov. Guidance changes; your case deserves current law.

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